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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
19/643,739	04/09/2026	Zhong HE	68401-H017US00	6247

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Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Notice of the Office communication was sent electronically on above-indicated "Notification Date" to the following e-mail address(es):

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PPH Dismissed
Final due date within 1 month: 2026-08-09
Input by: Qin Zhang
Reviewed by:OA team

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In re Application of	:	
HE et al.	:	
Application No. 19/643,739	:	
Filed: April 9, 2026	:	DECISION ON PETITION
For: METHODS FOR SURGICAL SEGMENT SELECTION IN ADOLESCENT IDIOPAHIC SCOLIOSIS ASSISTED BY DEEP LEARNING	:	

This is a decision on the request to participate in the Patent Prosecution Highway (PPH) program and the petition under 37 CFR 1.102(a), filed April 9, 2026, to make the above-identified application special.

The request and petition are **DISMISSED**.

DISCUSSION

A grantable request to participate in the PPH pilot program and petition to make special require:

1. The U.S. application for which participation in the Global/IP5 PPH pilot program is requested must have the same earliest date, whether this is the priority date or filing date, as that of a corresponding national or regional application filed with another Global/IP5 PPH participating office or a corresponding PCT international application for which one of the Global/IP5 PPH participating offices was the International Searching Authority (ISA) or the International Preliminary Examining Authority (IPEA);

2. Applicant must:
    a. Ensure all the claims in the U.S. application must sufficiently correspond or be amended to sufficiently correspond to the allowable/patentable claim(s) in the corresponding Office of Earlier Examination (OEE) application and
    b. Submit a claims correspondence table in English;

3. Examination on the merits of the U.S. application has not begun;

4. Applicant must submit:
    a. Documentation of prior office action:

i. a copy of the office action(s) just prior to the "Decision to Grant a Patent" from each of the Global/IP5 PPH participating office application(s) containing the allowable/patentable claim(s),
ii. if the allowable/patentable claim(s) are from a "Notification of Reasons for Refusal" then the Notification of Reasons for Refusal,
iii. if the Global/IP5 PPH participating office application is a first action allowance then no office action from the Global/IP5 PPH participating office is necessary should be indicated on the request/petition form, or
iv. the latest work product in the international phase of the OEE PCT application and

b. An English language translation of the Global/IP5 PPH participating office action or work product from (4)(a)(i)-(ii) or (iv) above; and

5. Applicant must submit:
   a. An IDS listing the documents cited by the Global/IP5 PPH participating office examiner in the Global/IP5 PPH participating office action or work product (unless already submitted in this application) and
   b. Copies of the documents except U.S. patents or U.S. patent application publications (unless already submitted in this application).

Conditions (1), (3), (4) and (5) above are considered to have been met. However, the request to participate in the PPH pilot program and petition fail to comply with condition(s) (2).

Regarding the requirement of condition (2), the Claims Correspondence Table states that U.S. claims 1-16 correspond to OEE claim 1. However, U.S. claim 1 does not sufficiently correspond to allowable/patentable OEE claim 1 because U.S. claim 1 does not include the limitation "and assigning a category label to each region" recited in OEE claim 1. Further, U.S. claim 1 does not sufficiently correspond to allowable OEE claim 1 because U.S. claim 1 include the limitation of "and outputs a predicted type and a confidence for each region" not recited in OEE claims. Thus, the claims do not sufficiently correspond. **It is applicant's responsibility to compare and identify claims corresponding between the U.S. application and OEE application**.

Applicant is given **ONE** opportunity within a time period of **ONE MONTH** from the mailing date of this decision to correct the deficiencies. **NO EXTENSION OF TIME UNDER 37 CFR 1.136 IS PERMITTED.** If the deficiencies are not corrected with the time period given, the application will await action in its regular turn.

Response must be filed via the Patent Center using the document description: Petition to make special under Patent Pros Hwy. Any preliminary amendments and IDS submitted with the PPH documents must be separately indexed as a preliminary amendment and IDS, respectively.

Information regarding the status of published or unpublished applications may be obtained by authorized registered users from Patent Center at: https://patentcenter.uspto.gov. In addition, information regarding published applications and applications open to public inspection may be obtained from the Patent File Wrapper (PFW) system at: https://data.uspto.gov/patent-file-wrapper.

Telephone inquiries concerning this decision should be directed to Joy Dobbs at (571) 272-3001. All other inquiries concerning the examination of this application should be directed to the assigned Technology Center.

/Andrea M Smith/
Andrea Smith
Lead Paralegal Specialist, OPET